

Amended Claims

20110052737

22/3/12

Application/Control Number: 12/855,391

Page 2

Art Unit: 1655

EXAMINER'S AMENDMENT

An examiner's amendment to the record appears below. Should the changes and/or additions be unacceptable to applicant, an amendment may be filed as provided by 37 CFR 1.312. To ensure consideration of such an amendment, it MUST be submitted no later than the payment of the issue fee.

Authorization for this examiner's amendment was given in a telephone interview with Mike on 3/7/2012.

The application has been amended as follows:

IN THE CLAIMS:

Claims 1-4, 6 and 29 have been cancelled.

In claim 7, at line 1, delete "claim 1" and replace with --claim 30--.

In claim 7, at line 1, delete "is a" and replace with --is in the form of a--.

The following new claims, claims 30-32, have been added.

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30. A method of treating a skin condition and/or fine lines and wrinkles in a subject in need thereof comprising topically applying to skin of said subject a composition consisting essentially of:

(a) a therapeutically effective amount of an aqueous extract of *Nymphaea gigantea* flower;

(b) a therapeutically effective amount of an aqueous extract of *Plumeria alba* flower; and

(c) a dermatologically acceptable vehicle, wherein said skin condition is erythema or dry, flaky or itchy skin.

31. The method of claim 30, wherein the aqueous extract of *Nymphaea gigantea* flower is present in the composition in an amount of from 0.1% to 20% by weight.

Art Unit: 1655

32. The method of claim 30, wherein the dermatologically acceptable vehicle consists of: water, glycerin, butylene glycol, phenoxyethanol, potassium sorbate and methylparaben.

Conclusion

Claims 7 and 30-32 are allowed.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to Amy L. Clark whose telephone number is (571)272-1310. The examiner can normally be reached on Monday to Friday 7 am to 3:30 pm.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Terry McKelvey can be reached on (571)272-0775. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/Amy L Clark/
Primary Examiner, Art Unit 1655